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UNIT-3

Pharmaceutical Jurisprudence (BP 505T)Pharmacy Act - 1948

- Medicinal and Toilet Preparation Act - 1955
- Narcotic drugs and Psychotropic Substances Act - 1985 and Rules.

Chapter - I Pharmacy Act - 1948

Syllabus :-

Objectives Definitions PCI; its constitution and functions, Education
Regulations, State and Joint state pharmacy councils; constitution and functions, Registration of pharmacists, offences and penalties.
 ↳ Registered pharmacist, first & subsequent register

• Pharmacy Act →

• It is an act to regulate the profession of pharmacy in India and its main purpose is to make better the practices of pharmacy.

• This act is passed in 1948.

↳ Govt
Stat

• This act have been divided into 5 chapters and 46 sections

• ~~passer~~ This act was implemented everywhere in India, but not in Jammu & Kashmir. This act was amendment in 1959, 1976 and 1983.

• Objectives →

- Regulating and Raising the status of profession of pharmacy in India.

- provides uniform education and training to the persons

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- willing to enter the profession of pharmacy.
- maintaining control over the persons entering the profession of pharmacy.
 - to regulate the activities of pharmacists (pharmacists के काम).
 - to constituents → PCI (Pharmacy Council of India)
 ↓
 State Pharmacy Council (SPC)
 ↓
 for registration of pharmacists.
 ↓
 for regulate pharmacy education.

- Reasons to establish Pharmacy Act 1948 — only for knowledge purpose
- In 19-20th century, there are no proper law for controlling the operations related to drugs.
- That time pharmacy profession was represented merely by the compounder (lowest rank workers) who does not require any education.
- If an individual can read a prescription and do some dispensing work, he/she became a compounder.
- That time India's pharmacy profession ^{was} very bad impression.
- To control all this, government passed this act.
- In modern perspectives, a pharmacist is regarded as a member of health care team and his main work is to

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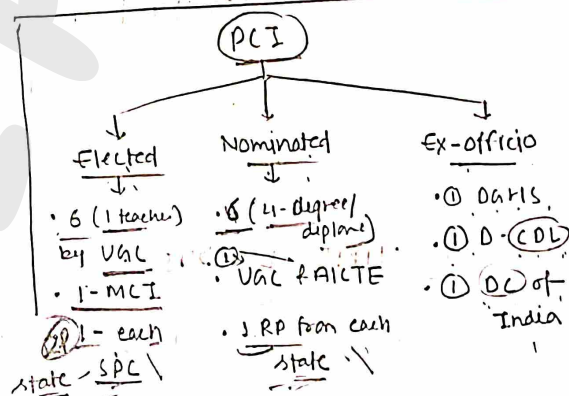
safeguard the public health by making available the right medicines.

PHARMACY COUNCIL OF INDIA (PCI)

- The pharmacy council of India (PCI) or central council was first constituted by the central government in 9th August 1948 under section 3 of the pharmacy act.
- It is constituted to regulate the study & education of pharmacy. It reconstituted after every 5 years.

[Constitutions] →

- Elected members
- Nominated members
- Ex-officio members



a) Elected members →

- six members elected by the UGC (University Grant commission). in which at least one teacher each in pharmaceutical chemistry, pharmacology & pharmacognosy on the teaching staff of a Indian university.
- One member elected by the Medical Council of India (MCI).
- One members who shall be registered pharmacist to represent each state elected by state council.

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b) Nominated members →

- Six members nominated by the central gov. in which at least four person possessing degree or diploma in pharmacy, and also engaged in practice of pharmacy.
- A representative each of the University Grants Commission (UGC) and All India Council for Technical Education (AICTE).
- One registered pharmacist to represent each state nominated by the state government / Union territory administration (UTA).

c) Ex-officio members →

- The director general of health services (H.S.)
- The director of central drugs laboratory (CDL)
- The drugs controller of India.
DC
- President and Vice president of PCI
- The president and vice president of the PCI are elected by the members of the ~~member~~ council from amongst them-selves.
- They hold office for five year. Then they are re-elected and they can participate in it.

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• The executive committee.

PCI constitute an executive committee in which

- ex officio members

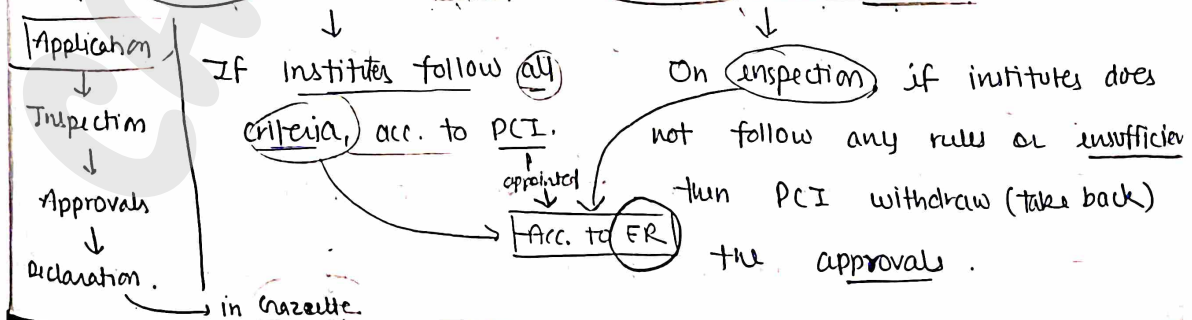
- a) president (chairman of committee)b) vice-president (ex-officio)- five other members elected by the PCI amongst its members.• It constitute for some general or special purposes.• functions of PCI

The main functions of PCI are:—

- Educational pattern
- to prescribe minimum standard of education required as a pharmacist.
 - to approve the courses of study and examinations.
 - The type and duration of practical training after the regular course is complete.
 - Ensuring that the entire country is following the education standard set by the PCI. — ER

ER • All educational standards framed for the pharmacists by the (PCI) council are known as the Educational Regulations.

ER Approval of institutions / withdrawal of Approvals .



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the approval of foreign qualification

↓
for registration, passed one additional test in India.

PCI to compile and maintain central register of pharmacist.

↓
PCI maintain a register, which contains the names of all pharmacist of different states and also it updates timely.

maintain registration of pharmacists.
Acc. to Pharmacy act 1948.

ER-91

EDUCATION REGULATIONS

1991

With the approval of central government, the pharmacy council of India makes Education Regulation, in which they mention the minimum qualification needed for registration of pharmacists.

• functions →

① To prescribe the minimum standard of education required as pharmacist.

- ② - minimum qualification for admission to the course.
eg. for B. Pharmacy → (10+2 with PCM/PCB) is compulsory.
- Nature and period of course of study. b.pharma - (4 year)
 - Nature and period of practical training to be undertaken

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after completion of the regular course,

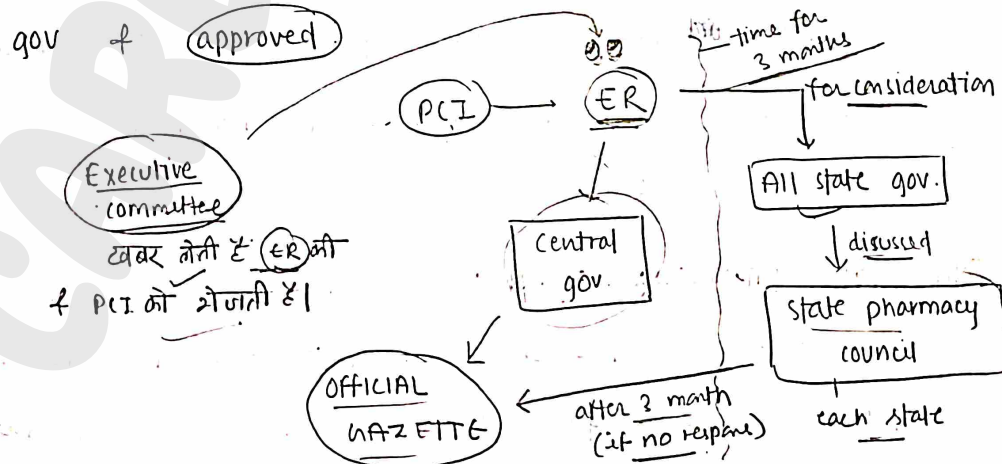
eg. Hospital & Industrial training etc--

- the subjects of examination

Question paper with reference to universities
and also included some competitive exams subjects

- The equipment and facilities to be provided by the institution for the students undergoing approved course of study
- Conditions to be fulfilled by institutions giving practical training
- Conditions to be fulfilled by authorities holding approved examinations
- The central governments approves the Education regulations.
- Before approvals,
 - Central council send the draft of ER and amendment if any to the all state government and wait for their opinion.
 - All state gov. have three months time for gives their opinion.

- After this, considered opinion if, otherwise send to central gov & approved



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• Application of Education Regulations to State

→ • Education Regulation (ER) become effective in a state when the state government passes a notification in the official gazette.

• State gov. passed this after consulting with state Pharmacy Council which is constituted under chapter 3 of Pharmacy Act.

work →

• Approval of study course & examinations

• withdrawal of approval.

• approval for other qualifications

• The central register of pharmacist. → SPC → 5 copies → PCI on input every year

differe

STATE & JOINT STATE PHARMACY COUNCILS

• State pharmacy council → (1)

• A state council of pharmacy is constituted under this pharmacy act by each state government.

• the main work of state council is to maintain a register for pharmacist and also monitor them.

• Joint state pharmacy council →

• When two or more states entered into an agreement and agree to serve the needs of the other participating states.

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Constitutions

State Pharmacy Council	Joint State Pharmacy Council
<u>Elected members</u> - 1) Six members elected amongst themselves by <u>Registered pharmacists of state</u> 2) One member elected by the <u>Medical council of the state</u> from amongst its members.	<u>Elected members</u> - 1) Six members elected amongst themselves by <u>Registered pharmacist of each participating state</u> 2) One member elected by the <u>Medical council of the each participating state</u> from amongst its members.
<u>Nominated members</u> - 1) five members nominated by the <u>state govt.</u> in which atleast <u>three</u> should possess a <u>degree or diploma in pharmacy</u>.	<u>Nominated members</u> - 1) Two - four members nominated by each participating <u>state govt.</u> in which more than <u>half</u> should possess a <u>degree or diploma in pharmacy</u>.
<u>Ex-officio members</u> - 1) <u>Chief administrative medical officer of the state</u> 2) <u>Officer-in-charge of drugs control Administration of the state</u> 3) <u>Government analyst of the state</u>	<u>Ex-officio members</u> - 1) <u>Chief administrative medical officer of each participating states</u> 2) <u>Officer-in-charge of drugs control Administration of the state</u> 3) <u>Government analyst of the each participating state</u>

- The president and Vice-president of the state councils are elected by the members from amongst themselves.

5 year → re-elected. (same as PCI)

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- In joint state pharmacy council,
During signing the agreement and constitution, the participating states decide that which government will perform various functions.
- functions of state & joint state pharmacy council.
 - i) Maintenance of Registers
 ↓ • Name of all pharmacist.
 • maintained by state council then send to central council (PCJ)
 - ii) Inspection →
 A no. of inspectors (with requisite qualification) are appointed by the state pharmacy council for inspecting premises where drugs are dispensed or compounded.
 It is also a function of SPC.
- Registration of Pharmacists

2 marks Registered pharmacist →
 A person whose name is for the time being entered ~~into~~ in the register of the state in which he/she is for the time being residing or carrying on his profession or business of pharmacy.
- The pharmacy Act, 1948 under the chapter 4 provides for the registration of pharmacists in all state in India.

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- A person can be registered as a pharmacist if he/she complies with the following conditions.
 - He/she should attained the age of 18 yr.
 - Should resides or carries on the business or profession of pharmacy in the state
 - Should ^{pass} an approved examination or possess a qualification granted by an authority outside India and approved by the central gov.
 - Should be a registered pharmacist in other state
- * The first register of pharmacist is required to be prepared by state gov. concerned.
- The register shall include the following particulars:
 - The full name and residential address of the registered persons.
 - The date of his first entry in the register
 - His qualification for registration
 - His professional address
 - Other particulars (that may be prescribed).
- Subsequent ^{etc. on} register →

After the preparation of the first register and before the Education Regulation have taken effect in state, a person has to qualify this for his name register. —

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- should be at least 18 yr of age
- Should have paid the prescribed fees.
- Should be a resident of the state or should carry out his business / profession of pharmacy in the state.
- fulfilled the requirement as prescribed for registration.
- possess a qualification granted by a foreign authority, but approved by the central council and passed a equivalent examination (matriculation).
- Removal of Names from the Register → A registered pharmacist may get his/her name removed from the register in following cases →
 - If name has been entered in the register due to error
 - If he/she has been imprisoned for an offence in any professional respect due to which executive committee renders him/her unfit for registered pharmacists.
 - If a person, employed to work under him in connection with any business of pharmacy, has been convicted of an offence or held guilty of an infamous conduct, if such person is a registered pharmacist, he is liable to remove his name from register

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OFFENCES & PENALTIES

- false claiming to be a registered pharmacist
(use such word 'Pharmacist', 'chemist', 'Druggist' & 'Dispenser')

→ fine upto 500 Rs on first conviction.

→ fine upto Rs. 1000 and imprisonment upto 6 months on second conviction.
- Dispensing by unregistered person

Under Section 42, no ^{person} other than Registered Pharmacist can dispense, mix or compound drugs on the prescription of a medical practitioner

→ Imprisonment upto six months or fine upto 1000 Rs or both
- failing to surrender certificate of Registration

→ A person is punishable with a fine upto Rs. 50 if his/her name has been removed from the state register and not surrender his certificate.
- Penalty for obstructing inspector dielt

→ Imprisonment of upto 6 months or fine upto 1000 Rs or both

UNIT - III

Q) Describe the rules relating to the export, import and transshipment of Narcotic drugs?

A) The export, Import and transshipment of Narcotic drugs in India is controlled by Narcotic drugs and Psychotropic Substance Act and Rules 1985.

→ NDPS Act is an act to Indian Parliament that controls or prohibits the production, manufacturing, cultivation, sale, purchase, transport and consumption of any narcotic drug or psychotropic substance.

OBJECTIVE :-

- To collect and improve the existing laws related to Narcotic drugs
- To make strict rules for controlling and regulation of operation related to Narcotic drugs and psychotropic substances
- To increase penalties for smuggling offence

- To make provision for the Implementation of International Conference related to Narcotic drugs and Psychotropic substances in which India is a party

RULES FOR IMPORT, EXPORT AND TRANSHIPMENT OF NARCOTIC DRUGS

- Chapter VIth of NDPS rules, 1985 deals with the Import, Export and Transshipment of Narcotic drugs and Psychotropic substances
- Import and Export of Narcotic drugs and Psychotropic substance is prohibited in India except with an Import certificate or export authorization issued under the rules

1) Import Certificate

- For Import of Narcotic & Psychotropic substance into India an Import certificate is issued by authority under Form 4 or 4A
- The Importer apply application for Import certificate with original copy of excise permit issue by State Government & ₹ 1000 fee also paid.

→ The Narcotic commissioner shall issue or deny Import certificate within 21 working days

If import certificate not issued to commissioner notify the applicant.

→ The authority prepare 7 copies of Import certificate

- original & duplicate copy to Importer
- one copy to Government of exporting country
- one copy to Drug Controller Government of India
- one copy retained by issuing authority in office

→ After that Narcotic drug can be Imported in India

2) Export Authorization

→ For export of Narcotic drugs from India an export authorization certificate issued by authority under form No-5

→ Exporter apply for export authorization certificate with original copy of excise permit issued by the state government & ₹1000 fees paid with application.

- The Narcotic commissioner shall issue or deny the export authorization within 21 working days.
- If export authorization not issued so Commissioner notify the applicant with reason
- The authority prepare 5 copies of export authorization
 - original sent to exporter
 - one copy send to commissioner of customs of the port
 - one copy send to excise authority of state in which exporter has his business
 - one copy forwarded to Government of Importing country
 - one copy retained by issuing authority in his office

3) TRANSHIPMENT

- Transfer of Narcotics from one port to another port or destination
- Transshipment of Narcotics can not be done in India without the permission of Commissioner of Customs/ port
- Commissioner will satisfy himself that the product is exported / imported by valid export authorization / Import certificate issued by authority

Q) Narcotic & Psychotropic Consultative Committee?

- A) The Central Government may constitute this Committee to provide advice to the Central Government on matters involving the administration of this Act.
- The Central Government appoints the members of this Committee consisting of a Chairman and few other members. The number of members in this Committee should not be more than twenty.

Functions :-

- The committee shall advise the Central Government on the matters relating to the administration of the Act
- The Committee will meet when required & have power to regulate its own procedure
- The Committee can constitute one or more sub-committee to perform their functions
- Overseeing the registration of manufacturers, distributors & prescribers of controlled substance ensuring they meet required qualification and standards
- Ensuring proper storage & accounting of controlled substance to prevent theft (Inventory Control)
- Conducting investigations into suspected violation of drug control laws, including raids on suspected illegal operations and coordinating with law enforcement agencies (Investigation & Enforcement)
- Educating the Public on the risks associated with drug abuse & the importance of responsible medication use. (Public Awareness)

- Providing guidance on access to addiction treatment programs and supporting initiatives for recovery (Treatment and Rehabilitation)
- Ensuring pharmacies properly store and dispense controlled substance including verifying prescriptions & report suspicious activity
- Determining which substances fall under the category of narcotics and psychotropic based on their potential for abuse and medical value (Classification of drugs)

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a) Failure to keep accounts or submit returns as required by law or keeping of false accounts or making of false statements	Rigorous imprisonment for up to 5 years or fine or both.
b) Wilfull and deliberate indulgence in breach of any provision of the Act or conditions of licence, etc., for which no penalty is otherwise imposed by the act	
Illegal possession for personal consumption or consumption of cocaine, morphine, diacetylmorphine or any other narcotic drug or psychotropic substance specified in this behalf.	Rigorous imprisonment for up to 1 year or fine or both
Illegal possession for personal consumption or consumption of substances other than those mentioned in the narcotic drug or psychotropic substance act.	Rigorous imprisonment for up to 6 months or fine
Offences for which no punishment is separately defined	
Abetment/attempt of offence	Same punishment as for the main offence.
Abetment or Criminal conspiracy	Same punishment as for the main offence.
Preparation of an offence	Half of the offence

For Narcotic drug or psychotropic substances, the Opium Officer (Inspector) is appointed under section 5 of Drug and cosmetics act 1940.

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Q) Write a note on Medicinal & Toilet Preparation Act?

A) Medicinal Preparation :- It includes all drugs which are intended/used for treatment or prevention of disease in body

Toilet Preparation :- means any product which used for personal hygiene or to clean improve body skin, Hair or teeth.

→ Perfumes and Deodorants are also considered as toilet preparation

Medicinal and Toilet preparation act was passed in 1955 to control the misuse of alcohol and to collect the tax & excise duties of medicinal & toilet preparation having alcohol or narcotic drugs

The rules of act was passed in 1956 & the act was come into force on 1st April 1957 to all over India.

OBJECTIVE :-

- To collect the tax and excise duties on product which containing alcohol & narcotic drugs
- To control misuse of alcohol in beverage
- It provide uniform rule for product all over the India and stop inter-state smuggling of alcoholic - medicinal & Toilet preparations

Manufacturing of Alcoholic Preparations :-

- Manufacturing of Alcoholic Preparations & narcotic products can be done only by an authorized license to whom the license is issued
 - The manufacturing of alcoholic preparation can be done in two factory :-
- ① In bond (Bonded) Manufactory
 - A bonded manufactory is a licensed and approved facility for the storage and manufacturing of medicinal and toilet preparation
 - These preparation contain alcohol, opium, Indian Hemp on which DUTY (TAX) has not been paid

2) Outside Bond (Non-Bonded) Manufactory

These are approved and licensed premises for the manufacture and storage of medicinal and toilet preparation containing alcohol, opium, Indian Hemp on which DUTY HAS BEEN PAID

Design and Construction of Non-Bonded Manufactory :-

Manufactory must have following requirements

- (i) Raw spirit store
- (ii) Manufacturing room / laboratory
- (iii) Finished Product Store

Entrance :- Only one entrance to the manufactory

Doors :- one door each to the laboratory spirit store and finished product store

Windows :- Windows should be protected by Iron Bars

Drainage System :- There should be proper drainage system where every pipe from sink should be connected to main drainage system

Manufacturing in Non-Bonded Manufactory

- 1) Receiving Tax Paid Spirit
 - First of all spirit purchased and manufacturer pay excise duty as per quantity
 - Three copies of application should be sent for getting spirit
 - + one to excise officer in-charge
 - + one to warehouse keeper
 - + one to be retained by the licensee
- 2) Manufacture :- After that products are prepared by using duty paid spirit on the authorized premises
- 3) Storage :- After manufacturing the finished product are shifted from laboratory to finished goods store
- 4) Sampling :- Excise officer withdraw samples of 10-15% of the total number of batches manufactured each month for analysis
- 5) Record :- The manufacturer should maintain the records of all business transactions & sent to authorized officer on 5th date of every month

6) Inspection

- Inspection of non-bonded laboratory should be done at least one time in a month by authorized excise officer of area.

Design and Construction of Bonded Manufactory

Manufactory must have following four distinct compartments

- (i) Raw spirit store
- (ii) Manufacturing Room
- (iii) Finished Goods store
- (iv) Office of excise staff

- Entrance :- The facility should have only one entrance

- Compartments :- Each compartments should have its own door

- Spirit store :- There should be a separate plain spirit store

- Manufacturing Rooms :- There should be a large room for manufacturing medicinal preparation

- Storage Rooms :- There should be one or more rooms for storing finished medicinal preparations.
- Office-in-charge room :- There should be a room with basic furniture for the office-in-charge.
- Manufacturing of Bonded Manufactory
 - 1) Receiving of Sample
 - A distillery or spirit warehouse approved by the excise commissioner supplies the spirit for the manufacture of medical or toilet preparation.
 - 2) Verification and Storage of Alcohol / spirit on its arrival
 - On its arrival in bonded manufactory, alcohol is measured in volume & strength.
 - ↓
 - Entries are made in register and stored in spirit store room under excise lock.

3) Issue of spirit from spirit store for manufacture
Calculations done and spirit obtained from the spirit store



The spirit so issue has to be immediately mixed with other ingredients of the preparation in the presence of the officer in charge



The vessels should be labelled with

1- Name and batch no. of the preparation

2 - Description and quantity of alcohol put in

4) Sampling

→ On completion of medical or toilet preparation the manufacturer may be permitted by the officer in charge for analysis and determination of its alcoholic strength

5) Storage of Finished Product

→ All finished preparation should be stored in bulk in jars or bottles each containing not less than 2.5 litres of the preparation

- Every container should be labelled with the :-
- Name of Preparation
 - Strength
 - Date of Expiry
 - Actual content in Bulk form

Q Write about licensing Procedure?

A For the manufacture of medicinal & toilet preparation containing alcohol and narcotic substances

- From excise commissioner (Manufacture in Bond)
- From the officer as the state government (manufacture outside Bond)

- Applied in prescribed form & fee 2 month before manufacture

Such application contain following particulars

- 1) Name and address of applicant; If applicant is firm then name and address of partners, If applicant is company then name of directors managers & managing agents & reg no. of company
- 2) Name and address of Place / Site of the Bonded or Non bonded manufacturer is situated
- 3) Amount of capital proposed

Condition of License

- No licence for alcoholic medicinal & gives unless there is a licence issued under the D/c.
- The license on payment of specified fee can be obtained subject to fulfillment of conditions for manufacture in bond and outside bond of medicinal and toilet preparations ayurvedic, homeopathic and unani medicine as well as for bonded warehouse.

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Manufacture in Bond	Manufacture in out side bond
Suitable for large scale manufacture.	Suitable for small scale manufacture. 
Bonded laboratory is required to function under the supervision of excise staff.	No excise staff is needed.
Excise duty is payable on the removal of finished goods from bonded laboratory.	Excise duty is paid at the time of purchase of rectified spirit
Construction of bonded laboratory must have the following four distinct compartments: 1. Raw spirit store. 2. Manufacturing room. 3. Finished goods store. 4. Office of excise staff.	Construction of non-bonded laboratory must have the following compartments: 1. Raw spirit store. 2. Manufacturing room. 3. Finished goods store.
Advance Security money	No Advance Security money needed.
No such relaxation.	The State Government may relax conditions of requirements of infrastructure if alcohol consumption is less. (less than 100 ltr.)
The spirit can be obtained from a distillery or a spirit warehouse by sending an indent prepared only in two copy .	The spirit can be obtained from a distillery or a spirit warehouse by sending an indent prepared in triplicate .

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Involvement in offences by owner or occupiers of land	Imprisonment for up to 6 month or fine of up to 500rs pay or both
Aggravating search, seizure etc. by excise officer	Fine of up to 2000 for every offence
Failure of excise officer on duty	Imprisonment for up to 3 month or fine of up to 3 month pay or both
Improper keeping of stocks or account	Fine of up to 100
Making false entries or tearing pages from stocks book	Fine up to 2000 and goods liable to confiscation
Sales of dutiable goods otherwise than in prescribed containers bearing the labels	Fine of up to 1000 & goods liable to confiscation
Failure to furnish proof of export within specified period	Fine of up to 2000
Offences with respect to warehousing	
Opening any locks or door of warehouse without prior consent or	Fine of up to 2000 & goods liable to confiscation
Making any alteration in warehouse without prior consent	Fine of up to 2000 & goods liable to confiscation
Warehousing or removing goods in contravention of the rules or	Fine of up to 2000 & goods liable to confiscation
Privately removing or concealing any goods either before or after being warehoused	Fine of up to 2000 & goods liable to confiscation
Obstructing the officers and giving false information	Fine of up to 500
Willfully and maliciously giving false information and causing arrest	Imprisonment for up to 2 year or fine of up to 2000 rs, or both
Disclosure of information by excise officers	Fine up to 1000
Breach of any rule where no penalty is provided	Fine up to 1000 and goods liable to confiscation

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